

HEADNOTE

“- An application to obtain confirmation of the Applicant’s registration on the list of entitled representatives under Art. 48(3) UPC Agreement is admissible in accordance with Rules 13 et seq. and Rules 17 et seq. EPLC Rules

- Such an application requires clear and convincing evidence that a respective application has been filed in the Court Management System (CMS) of the UPC, as it is and has been mandatory that all such applications be filed in the CMS, unless the CMS has ceased to function, Rule 4 UPC Rules of Procedure (RoP).

- In that regard it is for the Applicant to submit all evidence available to him that he filed an application for registration on the list of entitled representatives under Art. 48(3) UPC Agreement.

- And, as only the Registrar has access to the CMS, it is for the Registrar to carry out a search in the CMS to ascertain whether an application for registration on the list of entitled representatives under Art. 48(3) UPC Agreement was filed by the Applicant.”

COURT
Court of Appeal Luxembourg

PATENT

PROCEEDINGS
Procedural order

KEYWORDS

Representative registration

admissibility

evidence

court management system

registrar authority

Article 48 Representation

SUMMARY

The Court of Appeal in Luxembourg issued a procedural order concerning registration on the list of entitled representatives. According to the headnotes of the decision, applications for confirmation of registration as an entitled representative under Article 48(3) of the UPC Agreement must be filed through the Court Management System and are admissible under the applicable procedural rules. The applicant must provide clear and convincing evidence that such an application was actually submitted in the CMS, since filing through this system is mandatory unless it has become unavailable. The applicant bears the responsibility to submit all available evidence demonstrating that they filed their registration application. The Registrar, as the only party with access to the CMS, must conduct a search of the system to verify whether the applicant's registration application was indeed filed.